

Court No. - 3

Case :- WRIT - C No. - 10930 of 2022

Petitioner :- Devender

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Deepak Kumar Yadav

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard Sri Deepak Kumar Yadav, learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Baleshwar Chaturvedi, learned counsel for the respondent Nos.2 and 3.

This writ petition has been filed praying for the following relief:

"A. Issus a writ, order or direction in the nature of certiorari quashing the impugned provisional/final assessment notices issued under section 126 of Electricity Act, as well as demand notice dated 01.10.2019 and notice dated 28.01.2022.

B. Issus a writ, order or direction in the nature of mandamus commanding and directing to the respondent no. 3 to decide the representation dated 18.11.2019 filed by petitioner.

C. Issus a writ, order or direction in the nature of mandamus commanding and directing to the respondents not to take any coercive action against the petitioner."

Sri Baleshwar Chaturvedi, learned counsel for the respondent Nos.2 and 3/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No.3, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 27.5.2022

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